

25STCV28154 25STCV28154

County: los-angeles

Division: Civil Law and Motion

Department: 735

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Case Number: 25STCV28154 Hearing Date: August 17, 2026 Dept: 735

7980 Sunset Associates v. Nunzio

Donato Ciaraulo

Motion for Reconsideration

BACKGROUND

Plaintiff

7980 Sunset Associates, a California Partnership (Plaintiff) filed this commercial unlawful detainer action against defendant Nunzio Donato Ciaraulo dba Vivoli Café (Defendant) on September 25, 2025. On May 4, 2026, the Court granted Plaintiff's motion for summary judgment. On May 11, 2026, Defendant filed the instant motion for reconsideration of the summary judgment. Because the court entered judgment on May 26, 2026, and defendant has filed a notice of appeal, the court lacks jurisdiction to rule on the motion. (Apri Ins. Co. v. Superior Court (1999) 76 Cal.App.4th 176, 181-182.)

In

Defendant's reply, Defendant requests that the Court construe the motion according to its substance as a motion for new trial and points to a different department in this court which has done so in a different proceeding involving the same parties. (Motion, Exhibit E.) Trial courts may consider a motion regardless of the label put on it by the moving party. The court finds, however, that the court lacks jurisdiction to consider a motion for new trial because the 75-day jurisdictional deadline has expired. (Code of Civ. Proc. § 660 subd. (c).) Here, the clerk gave notice of entry of judgment on May 26, 2026, and thus the 75 days expired on August 10, 2026.

CONCLUSION

The

Court denies Defendant's motion for reconsideration or new trial.

Plaintiff

shall give notice.